

STATE OF NEW YORK

9056--A

Cal. No. 943

IN SENATE

January 28, 2026

Introduced by Sens. COONEY, HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT in relation to establishing a comprehensive study examining highway safety standards and necessary worker protection improvements

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The New York state department of transportation, in consultation with the department of motor vehicles, the governor's traffic
2 safety committee, the thruway authority, and the division of state
3 police, is hereby authorized and directed to conduct a comprehensive
4 study of highway construction and maintenance worker safety.

5
6 § 2. The department of transportation shall gather feedback on the
7 safety of highway construction and maintenance workers from a broad
8 range of stakeholders, including but not limited to road and bridge
9 construction and maintenance workers, labor unions, road and bridge
10 construction contractors and their associations, project administrators,
11 and municipal officials. The department of transportation shall hold at
12 least three public hearings across the state to gather input from such
13 stakeholders.

14 § 3. The results, findings, and recommendations of the study shall be
15 for study purposes only and shall not be considered binding upon the
16 executive or the legislature in any manner.

17 § 4. The study required by this act shall include, but not be limited
18 to:

19 (a) an examination and review of the impact of the current regulatory
20 framework and other measures used to improve the safety of highway
21 construction and maintenance workers including, but not limited to, the
22 operation of photo speed violation monitoring systems within work zones,
23 the use of a police presence at major active work zones as defined by
24 the commissioner of transportation, the highway construction and maintenance
25 safety education program established pursuant to section 224-a of

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 the vehicle and traffic law, the highway construction and maintenance
2 safety education fund established pursuant to section 99-n of the state
3 finance law, and any other applicable law, rule, or regulation;

4 (b) the identification of best practices in the road construction and
5 maintenance industry relating to highway construction and maintenance
6 worker safety that could be implemented to improve the safety of such
7 workers, including methods used in other states or countries;

8 (c) a review and analysis of studies, statistics, and data driven
9 analysis models relating to further improvements in highway construction
10 and maintenance worker safety and protection;

11 (d) a review and analysis of the feedback from stakeholders gathered
12 by the department of transportation pursuant to this act; and

13 (e) anticipated costs associated with implementing new roadway safety
14 measures reviewed as part of the study.

15 § 5. No later than one year after the effective date of this act, the
16 department of transportation shall submit a report of its findings and
17 recommendations to the governor, the temporary president of the senate,
18 the minority leader of the senate, the speaker of the assembly, the
19 minority leader of the assembly, and the chairs and ranking members of
20 the senate and assembly transportation committees. The report shall
21 also be published on the department of transportation's public website.

22 § 6. For the purposes of this act, the term "labor union" shall mean a
23 bona fide labor organization which has established itself, and/or its
24 affiliates, as the collective bargaining representative for persons who
25 perform road or bridge construction or maintenance work.

26 § 7. This act shall take effect immediately.